



Notification Waiver Determination

Kanda Healthcare – Live Your Way, QLD

Acquisition	Kanda Healthcare Pty Ltd (Kanda) applied for a notification waiver in respect of its proposed acquisition of 100% of the assets of the disability support business known as Live Your Way Australia (LYWA), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	4 August 2026

Parties to the Acquisition	The acquirer, Kanda, is an Australian care provider supplying a broad range of care services, including aged care, in-home care, disability support, community nursing, and children, youth, and family services in metro and regional communities across Australia. Kanda is a National Disability Insurance Scheme (NDIS)-registered provider and delivers disability support services to NDIS participants, including in the Bundaberg and Fraser Coast regions of Queensland. It does not currently provide NDIS-funded disability support services in the North Burnett region. Kanda is controlled by Genesis Capital, an Australian-based private equity firm that invests in businesses operating in the healthcare sector. The target, LYWA, is owned by Live Your Way Australia Pty Ltd and is a NDIS-registered provider delivering disability support services to NDIS participants. LYWA focuses on providing community access support services to NDIS participants in the Bundaberg, North Burnett, and Fraser Coast regions of Queensland.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application, and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: the parties' combined share of supply of NDIS-funded disability support services in the Bundaberg and Fraser Coast regions is low, and the increment arising from the Acquisition would be small

	b. there are alternative providers of NDIS-funded disability support services in the Bundaberg and Fraser Coast regions, and in Queensland more broadly. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**